

CHAPTER 65*Licensed Premises in New Towns Act, 1952***ARRANGEMENT OF SECTIONS****Section**

1. Repeal of State management of liquor trade in new towns.
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- SCHEDULE**—Repeal of Provisions as to State Management in New Towns and Consequential Amendments.

An Act to repeal so much of the Licensing Act, 1949 as provides for State management of the liquor trade in new towns; to make provision as to the grant of new justices' licences, and the removal of justices' licences, for or to premises in new towns in England and Wales and as to the grant of new certificates and the renewal of certificates in respect of premises in new towns in Scotland; and for purposes connected with the matters aforesaid. [30th October 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Repeal of State management of liquor trade in new towns. 1. Part I of the Licensing Act, 1949, shall cease to have effect so far as it provides for the extension of State management of the liquor trade to new towns; and accordingly the said Part I shall be amended in accordance with the provisions of the Schedule to this Act.

Committees to determine distribution of licensed premises in new towns. 2.—(1) For the purposes of determining the number, nature and distribution of licensed premises in new towns there shall be a committee constituted in accordance with the following provisions of this section for each new town or, if it appears to the Secretary of State that by reason of the proximity of any two new towns it is expedient that one committee should be appointed for them and the Secretary of State by order so directs, for those two new towns.

(2) Any such committee shall consist of a chairman appointed by the Secretary of State as being an independent person, and of

such even number as may be prescribed by order of the Secretary of State of other members appointed as follows, that is to say—

- (a) one half shall be appointed by the development corporation for the new town for which the committee is constituted or, if the committee is constituted for more than one new town, by the development corporations for each of the new towns in such proportions as may be specified by order of the Secretary of State;
- (b) the remainder shall be appointed from among the number of, and by, the licensing justices for the licensing district comprising the area for which the committee is constituted or, where that area comprises, or comprises land included in, more than one licensing district, from among the number of, and by, the licensing justices for each of those districts in such proportions as the Secretary of State may by order determine:

Provided that where the said area comprises part only of a licensing district, and it appears to the Secretary of State that by reason of the small extent of that part of the district and having regard to its nature the licensing justices have insufficient interest in the working of the committee to justify their representation thereon, it shall not be necessary for the committee to include any licensing justice for that district.

(3) The appointment of a member of any such committee shall be for such term, not exceeding three years, as may be determined by or under an order of the Secretary of State, with or without eligibility for being re-appointed, as may be so determined, and shall be subject to such conditions as may be so determined.

(4) The quorum of any such committee shall be such as may be determined by order of the Secretary of State.

(5) In the event of an equality of votes on any question, the chairman shall have a casting vote, but save as aforesaid the chairman shall not have a vote.

(6) Subject to the provisions of the two last foregoing subsections, the procedure of any such committee shall be such as the committee may determine.

(7) The proceedings of any such committee shall not be invalidated by reason of any vacancy therein or any defect in the appointment of a member thereof.

(8) The development corporation for the new town for which any such committee is constituted shall provide for the committee such accommodation and secretarial and other services as may be requisite for enabling the committee to exercise its

functions, and any expenses incurred by the committee in connection with the exercise thereof or in the payment of travelling and other allowances to members of the committee, being expenses incurred with the agreement of the development corporation given either before or after the incurring of the expenses, or in default of such agreement with the approval of the Secretary of State given as aforesaid, shall be defrayed by the corporation.

(9) In the case of a committee constituted for two new towns, the accommodation and services mentioned in the last foregoing subsection shall be provided by such one of the development corporations concerned, or partly by one and partly by the other, as may from time to time be agreed between the corporations or in default of agreement as may be determined by the Secretary of State, and the expenses mentioned in that subsection shall be defrayed by the development corporations in such proportions as may be so agreed or determined; and references in that subsection to the development corporation shall be construed accordingly.

(10) Any increase attributable to the provisions of this section in the sums—

- (a) payable out of moneys provided by Parliament under subsection (2) of section twelve of the New Towns Act, 1946 (which authorises grants out of such moneys for the purpose of enabling a development corporation to defray expenditure other than capital expenditure), or
- (b) issuable out of the Consolidated Fund under subsection (3) of that section (which authorises the issue thereof of sums necessary to enable advances to be made to a development corporation to defray expenditure properly chargeable to capital account),

shall be defrayed out of moneys provided by Parliament or, as the case may be, issued out of the Consolidated Fund.

(11) Where a committee is constituted under this section for two new towns, references in this Act to the area for which the committee is constituted shall be construed as references to the aggregate of the areas of the new towns for which it is constituted.

(12) Any order under this section may be varied or revoked by a subsequent order thereunder.

Proposals as to
new licensed
premises.

3.—(1) It shall be the duty of each committee constituted under the last foregoing section to consider from time to time, having regard to the existing circumstances of the area for which the committee is constituted and of the proposed development of that area, the requirements of the area as respects licensed

premises, the accommodation and amenities which should be provided thereat and the facilities which should be available thereat for obtaining both intoxicating liquor and meals and other refreshments, including the provision of accommodation to be provided for the consumption therein of beverages other than intoxicating liquor and in which the consumption of intoxicating liquor is prohibited.

(2) In the light of their consideration of the matters aforesaid, any such committee shall proceed to formulate from time to time proposals as to the places in the area for which the committee is constituted at which licensed premises should be established, and the proposals shall specify the way in which any licensed premises established in accordance therewith should be licensed, and shall contain provisions (hereinafter referred to as "supplementary provisions") as to the type of accommodation, amenities and services to be provided in premises being or comprising any such licensed premises, including, unless the committee in any particular case otherwise decide, provisions for the service of meals and of refreshments other than intoxicating liquor.

(3) References in this Act to specifying the way in which licensed premises should be licensed are references to specifying what description of excise licence for the sale of intoxicating liquor should be authorised to be held in respect of the premises, and references in this Act to the licensing of premises in accordance with proposals shall be construed accordingly.

(4) On formulating any such proposals the committee shall submit them to the Minister of Housing and Local Government (hereinafter referred to as "the Minister"), together with such plans and other matter explanatory of the nature and effect of the proposals as the committee think fit or as the Minister may in any particular case require.

(5) Where a committee have so submitted proposals to the Minister the committee shall publish—

- (a) by advertisement, in each of two successive weeks, in one or more local newspapers circulating in the area for which the committee is constituted,
- (b) in such further manner, if any, as the committee may determine,

a notice that they have submitted the proposals, naming a place at which copies thereof and of the plans and explanatory matter submitted to the Minister may be seen at all reasonable hours and stating the time (not being less than twenty-eight days) within which and the manner in which objections to the proposals may be made to the Minister.

(6) If no objection to the proposals is made to the Minister within the time and in the manner stated in the notice, or if all objections so made are withdrawn, the Minister may, if he thinks fit, confirm the proposals, but in any other case he shall, before confirming them, afford to any person making an objection an opportunity of appearing before and being heard by a person appointed for the purpose by the Minister or, if it appears to the Minister that the matters to which the objection relates are such as to require investigation by public local inquiry, cause a public local inquiry to be held, and shall consider any objection not withdrawn and the report of the person before whom the objector appeared or of the person holding the inquiry, as the case may be, and may then confirm the proposals.

(7) The power of the Minister under this section to confirm proposals shall include power—

- (a) where the proposals relate to the establishment of licensed premises at more than one place, to confirm the proposals (but without prejudice to the next following paragraph) as respects one or some only of the places in question,
- (b) to confirm the proposals subject to modifications in so far as they relate to the situation of proposed licensed premises,
- (c) to confirm the proposals subject to the modification of any supplementary provisions contained in the proposals or to the addition of any supplementary provisions which could have been included in the proposals by the committee,

and references in this Act to proposals which have been confirmed shall be construed accordingly.

(8) Proposals of a committee under this section may be varied or revoked by subsequent proposals of the committee made, submitted to the Minister, and confirmed in like manner as the original proposals; and references in this Act to proposals under this section which have been confirmed shall be construed as references to such proposals as they have effect having regard to any subsequent variation or revocation thereof.

(9) Subsections (2) to (5) of section two hundred and ninety of the Local Government Act, 1933 (which relate to the summoning of witnesses, the production of documents and costs in the case of local inquiries held under that section) shall apply to an inquiry held under this section as they apply to inquiries held under that section but with the substitution for references therein to a department of references to the Minister.

Grant of new
licences, and
removals, in
new towns.

4.—(1) Where application is made for the grant of a new licence for any premises in a new town, being premises situated in accordance with proposals under the last foregoing section which have been confirmed, or for an ordinary or special removal

of a licence to such premises, then if the effect of the grant or removal would be that the premises would be licensed in accordance with the proposals and if the licensing justices are satisfied—

- (a) that the premises are fit and convenient for the purpose or, in the case of an application for the provisional grant of a new licence or of an authority for the ordinary removal of an on-licence, that if the premises had been actually constructed in accordance with the plans submitted to the licensing justices they would be fit and convenient as aforesaid,
 - (b) that the applicant is not a disqualified person for the purposes of the Licensing (Consolidation) Act, 1910, and is in all other respects a fit and proper person to be a holder of a licence, and
 - (c) that effect has been or will be given to any supplementary provisions contained in the proposals,
- the justices shall grant the application :

Provided that nothing in this subsection shall be construed as limiting the powers and duties of licensing justices to impose conditions on the grant of a new licence.

(2) Any application made as mentioned in the last foregoing subsection may be made and dealt with either at a general annual licensing meeting or at transfer sessions.

(3) The grant of a new licence on an application made as mentioned in subsection (1) of this section, and an order for the ordinary removal of a licence made on such an application, shall not require confirmation by the confirming authority ; and section thirty-three of the Licensing (Consolidation) Act, 1910 (which relates to the provisional grant and confirmation of licences to new premises) shall, in relation to an application made in such circumstances, have effect as if references to the confirming authority, the confirmation of a licence and an order of confirmation were omitted.

(4) It shall not be lawful for a new on-licence to be granted for any premises in a new town, not being on-licensed premises, or for a new off-licence to be granted for any premises in a new town, not being licensed premises, or for an on-licence to be removed to any premises in a new town, not being on-licensed premises, or for an off-licence to be removed to any premises in a new town, not being licensed premises, unless—

- (a) the premises are situated in accordance with proposals under the last foregoing section which have been confirmed, and
- (b) the effect of the grant or removal would be that the premises would be licensed in accordance with the proposals, and

(c) the licensing justices are satisfied that effect has been or will be given to any supplementary provisions contained in the proposals.

(5) It shall not be lawful for a new licence to be granted for, or for a licence to be removed to, any on-licensed premises in a new town, or for a new off-licence to be granted for, or for an off-licence to be removed to, any licensed premises in a new town unless (in either case) the committee constituted under section two of this Act for the new town notify the licensing justices that the committee have no objection to the grant or removal:

Provided that this subsection shall not restrict the grant of a licence for, or the removal of a licence to, such premises as aforesaid unless the effect thereof would be to add to the descriptions of intoxicating liquor authorised to be sold on the premises or to abolish a limitation that intoxicating liquor should only be sold for consumption with a meal in a restaurant.

(6) The grant of a new licence, and an order for the ordinary removal of a licence, being a grant or order made by virtue of a notification from the committee under the last foregoing subsection, shall not require confirmation by the confirming authority.

(7) In this section the expression "on-licensed premises" means premises in respect of which a justices' on-licence has been granted and is in force, and for the purposes of this subsection, and of the definition of the expression "licensed premises" in the Licensing (Consolidation) Act, 1910, in so far as it applies for the purposes of this section, a licence shall not be treated as not being in force by reason only that the grant or removal thereof was provisional and has not been declared to be final.

(8) Where, as respects any premises in a new town, the Secretary of State certifies that their situation was approved by him, in consultation with the development corporation for the new town, before the commencement of this Act, the premises shall be treated for the purposes of this section as premises situated in accordance with proposals under the last foregoing section which have been confirmed and which specify as the way in which the premises should be licensed such way as may be specified by the Secretary of State; and if the Secretary of State further certifies that the plans of the premises were approved as aforesaid subsection (1) of this section shall apply in relation to the premises with the omission of paragraph (a) thereof.

5.—(1) Proposals under section three of this Act may include provision whereby during such period (hereinafter referred to as "the interim period") as may be specified in the proposals the next following subsection shall apply to any place specified in the proposals for the situation of licensed premises.

Temporary
licensed
premises.

(2) While by virtue of proposals under section three of this Act which have been confirmed this subsection applies to any place, premises situated at that place shall not be treated for the purposes of section thirty-seven of the Licensing (Consolidation) Act, 1910 (which relates to the qualification of premises for receiving justices' licences) as not being structurally adapted to the class of licence which is required by reason only of the materials of which the premises are constructed or to be constructed or of the fact that the premises were constructed or have been used for other purposes ; but—

- (a) nothing in this subsection shall be construed as requiring justices to grant an application for the grant of a licence for, or for a removal to, premises situated at the said place if in the opinion of the justices the premises are not proper to be used for the purpose,
- (b) where the justices grant such an application by virtue of this subsection they shall certify that they have so granted the application and the licence shall on the expiration of the interim period become void unless previously removed, otherwise than by virtue of this subsection, to other premises at the same place or removed to premises at a different place.

(3) Where proposals under section three of this Act include such provision as is authorised by subsection (1) of this section, proposals of the committee for other places at which licensed premises should be established may include provision whereby they shall not have effect until the expiration of the interim period or such earlier date as the committee may from time to time determine.

6. A person shall not be disqualified from acting as a Licensing justice in relation to any matter by reason only that, as a member of a committee constituted under section two of this Act or (before the commencement of this Act) as a member of a local advisory committee constituted under section one of the Licensing Act, 1949, he was concerned with the matter in question.

justices not
disqualified by
membership of
committees.

7. In section seventy-three of the Finance Act, 1947 (which provides that where in connection with the grant of a new on-licence there is surrendered an existing on-licence for the same premises or for other premises in the same licensing district or licensing planning area, the payment for monopoly value for the new licence shall be reduced by the amount of the monopoly value given up by the surrender), after the words "the same licensing planning area" in paragraph (b) of subsection (1) there shall be inserted the words "or the same area for which a committee is constituted under section two of the Licensed Premises in New Towns Act, 1952."

Extension
of s. 73 of
10 & 11 Geo. 6.
c. 35.

Duration of
ss. 2 to 4 and
transitional
provisions.

8. On the coming into operation, as respects any new town, of an order under subsection (1) of section fifteen of the New Towns Act, 1946, providing for the winding up and dissolution of the development corporation,—

- (a) if under section two of this Act a committee was constituted for that new town only, the committee shall cease to exist ;
- (b) if under the said section two a committee was constituted for that and another new town, the committee shall cease to exercise its functions as respects the first-mentioned new town and thereafter this section shall apply as if under section two of this Act the committee had been constituted for the said other new town only, and the Secretary of State shall vary any order made by him under the said section two in such manner as appears to him requisite in consequence of the coming into operation of the said order providing for the winding up and dissolution of the development corporation ;
- (c) section four of this Act shall cease to have effect as respects the first-mentioned new town, but without prejudice to the operation of subsections (1) to (3) thereof as respects any application made before the date on which the order providing for the dissolution of the development corporation came into operation or made at the transfer sessions next held after that date.

Application to
Scotland.

9.—(1) The provisions of this section shall have effect for the purpose of the application of this Act to Scotland.

(2) Sections five and seven shall be omitted.

(3) In the application of this Act to Scotland :—

- (a) the expression “ licence ” means a certificate as defined in Part VII of the Licensing (Scotland) Act, 1903, and the expression “ licensed premises ” means premises in respect of which such a certificate has been granted and is in force, and the expression “ licensed ” shall be construed accordingly ;
- (b) the expression “ licensing justices ” means licensing court, and the expression “ licensing justice ” means member of a licensing court ;
- (c) any reference to a licensing district shall be construed as a reference to any burgh, county or district for which there is a separate licensing court ;
- (d) the expression “ intoxicating liquor ” means excisable liquor ; and

(e) any reference to transfer sessions next held after a certain date shall be construed as a reference to the general half-yearly meeting of the licensing court next held after that date.

(4) In section three—

(a) for subsection (3) there shall be substituted the following subsection—

“(3) References in this Act to specifying the way in which licensed premises should be licensed are references to specifying—

(a) what form of certificate should be granted in respect of the premises, and

(b) what descriptions of excisable liquor should be authorised to be sold under that certificate,

and references in this Act to the licensing of premises in accordance with proposals shall be construed accordingly.”;

(b) for any reference to the Minister of Housing and Local Government there shall be substituted a reference to the Secretary of State ; and

(c) for subsection (9) there shall be substituted the following subsection—

“(9) Subsections (2) to (9) of section three hundred and fifty-five of the Local Government (Scotland) Act, 1947 (which relate to local inquiries held under that section) shall apply to an inquiry held under this section as they apply to inquiries held under that section.”

(5) The Secretary of State shall before confirming any proposals submitted to him under section three of this Act consult with the local planning authority within the meaning of the Town and Country Planning (Scotland) Act, 1947.

(6) For section four there shall be substituted the following section—

“Grant of
new certi-
ficates, and
renewals, in
new towns.

4.—(1) Where application is made in accordance with the provisions of the Licensing (Scotland) Acts, 1903 to 1934, for the grant of a new certificate for any premises in a new town, being premises situated in accordance with proposals under the last foregoing section which have been confirmed, or for a renewal of a certificate granted in respect of such premises, then if the effect of the grant or renewal

would be that the premises would be licensed in accordance with the proposals and if the licensing court are satisfied—

- (a) that the premises are fit and convenient for the purpose or, in the case of an application for the provisional grant of a new certificate or for a renewal of such a provisional grant, that if the premises had been actually constructed in accordance with the plans submitted to the licensing court they would be fit and convenient as aforesaid,
- (b) that the applicant is not disqualified under any enactment from holding a certificate and is in all other respects a fit and proper person to be a holder of a certificate, and
- (c) that effect has been or will be given to any supplementary provisions contained in the proposals,

the court shall grant the application.

(2) The grant of a new certificate on an application made as mentioned in the last foregoing subsection shall not require confirmation by the court of appeal; and subsection (4) of section forty-two of the Licensing (Scotland) Act, 1903 (which relates to the provisional grant and confirmation of certificates in respect of premises about to be constructed or in course of construction) shall, in relation to an application made in such circumstances, have effect as if references to the court of appeal, the confirmation of a certificate and an order of confirmation were omitted.

(3) It shall not be lawful for a certificate to be granted in respect of any premises in a new town which are not licensed at the time of the application for such grant unless—

- (a) the premises are situated in accordance with proposals under the last foregoing section which have been confirmed, and
- (b) the effect of the grant would be that the premises would be licensed in accordance with the proposals, and
- (c) the licensing court are satisfied that effect has been or will be given to any supplementary provisions contained in the proposals.

(4) It shall not be lawful—

- (a) for a certificate in a form different from the form of the subsisting certificate, or
- (b) for a certificate the effect of which would be to add to the descriptions of excisable liquor authorised to be sold on the premises, or
- (c) for a certificate the effect of which would be to authorise the sale of excisable liquor to travellers on Sunday where such sale is not authorised under the subsisting certificate,

to be granted in respect of any premises in a new town which are licensed at the time of the application for such grant unless the committee constituted under section two of this Act for the new town notify the licensing court that the committee have no objection to the grant.

(5) Where a certificate is granted as mentioned in the last foregoing subsection, the grant shall not require confirmation by the court of appeal.

(6) In the application for the purposes of this section of paragraph (a) of subsection (3) of section nine of this Act, a certificate shall not be treated as not being in force by reason only that the grant thereof was provisional and has not been declared to be final."

(7) In paragraph (c) of section eight and in paragraph (b) of subsection (2) of section ten of this Act, for the reference to subsections (1) to (3) of section four of this Act there shall be substituted a reference to subsections (1) and (2) of section four of this Act.

(8) Nothing in this Act shall affect the operation in any new town of the provisions of the Temperance (Scotland) Act, 1913.

10.—(1) This Act may be cited as the Licensed Premises in New Towns Act, 1952.

Short title,
interpretation
and extent.

(2) In this Act the expression "new town" means an area designated as the site of a proposed new town under section one of the New Towns Act, 1946, by an order (whether made before or after the passing of this Act) which has become operative:

Provided that—

- (a) if an order designating the site of a proposed new town is revoked, section eight of this Act shall with the necessary modifications apply as if at the time of the

revocation of that order an order had come into operation under subsection (1) of section fifteen of the New Towns Act, 1946, providing for the winding-up and dissolution of the development corporation ;

- (b) where, by reason of the variation of an order, land ceases to be comprised in such a site, the variation shall not affect the application of subsections (1) to (3) of section four of this Act as respects an application made before the variation took effect or at the next transfer sessions held thereafter, but save as aforesaid land excluded from such a site by the variation of an order, whether before or after the passing of this Act, shall be treated for the purposes of sections two to nine of this Act as if not comprised in a new town.

(3) As respects England and Wales, expressions in this Act which are used in the Licensing (Consolidation) Act, 1910, have the same meanings in this Act as in that Act.

(4) As respects Scotland, expressions in this Act which are used in the Licensing (Scotland) Acts, 1903 to 1934 have, save as otherwise provided in this Act, the same meanings in this Act as in those Acts.

(5) This Act shall not extend to Northern Ireland.

SCHEDULE

Section 1.

REPEAL OF PROVISIONS AS TO STATE MANAGEMENT IN NEW TOWNS AND CONSEQUENTIAL AMENDMENTS

Part I of the Licensing Act, 1949, shall be amended as follows.

In section one, in subsection (1) for the words from " for extending " to " in operation " there shall be substituted the words " for declaring the powers exercisable by the Secretary of State for the purposes of State management of the liquor trade ", and the words from " and for declaring " to the end of the subsection are hereby repealed.

In subsection (2) of section one the words " or new town " are hereby repealed.

In subsection (3) of section one the words from the beginning of paragraph (b) of the proviso to the end of the subsection are hereby repealed.

Subsections (6) to (8) of section one are hereby repealed so far as they relate to new towns.

In section four, in subsection (1) the words " on land in a State management district " and subsection (2) are hereby repealed.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Licensing (Scotland) Act, 1903	3 Edw. 7. c. 25.
Licensing (Consolidation) Act, 1910	10 Edw. 7. & 1 Geo. 5. c. 24.
Temperance (Scotland) Act, 1913	3 & 4 Geo. 5. c. 33.
Local Government Act, 1933	23 & 24 Geo. 5. c. 51.
New Towns Act, 1946	9 & 10 Geo. 6. c. 68.
Finance Act, 1947	10 & 11 Geo. 6. c. 35.
Local Government (Scotland) Act, 1947... ..	10 & 11 Geo. 6. c. 43.
Town and Country Planning (Scotland) Act, 1947	10 & 11 Geo. 6. c. 53.
Licensing Act, 1949	12, 13 & 14 Geo. 6. c. 59.

CHAPTER 66

Defamation Act, 1952

ARRANGEMENT OF SECTIONS

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